

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors (SNAP)
	Section No./Name	B-1000-SNAP Resources (SNAP)
	Document No./Name	B-1050-SNAP Transferring Resources
	Effective Dates	October 1, 2021

I. STATEMENT OF POLICY

B-1051-SNAP - PO PENALTIES FOR TRANSFERRING RESOURCES

The household unit is ineligible if within three months before application or any time after certification a member or disqualified member transfers a countable resource for less than its fair market value to qualify for benefits. This penalty applies only if the total of the transferred resource added to other countable resources would have affected eligibility.

The transfer of resources between members of the same SNAP household does not affect eligibility.

The transfer of resources for reasons other than qualifying for benefits, such as funds placed in an educational trust fund, does not affect eligibility.

B-1052-SNAP - PO HOW TO DETERMINE INTENT

Determine if the transfer of resources was an intentional act for the purpose of qualifying for benefits by:

- Evaluating the client's circumstances before and after the transfer and
- The reason for the transfer. An example of a transfer made for an acceptable purpose would be a transfer to cancel a legitimate debt.

B-1053-SNAP - PO LENGTH OF DISQUALIFICATION PERIOD

The length of disqualification is based on the amount by which the transferred resource exceeds the resource maximum when added to other countable resources.

Amount in Excess of Resource Limit	Period of Denial
\$0.01 to \$249.99	1 month
\$250 to \$999.99	3 months
\$1000 to \$2999.99	6 months
\$3000 to \$4999.99	9 months
\$5000 and more	12 months

Example: A one-person household has \$1750 in a bank account and transfers ownership of a certificate of deposit worth \$2000. When the countable value of the transferred resource is added to other resources, it exceeds the * \$2500 resource limit by \$1250. The \$1250 ** is used to determine the period of disqualification of six months.

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B-1054-SNAP - PO BEGINNING THE DISQUALIFICATION PERIOD

The disqualification period begins in the month of application unless the household is already certified when the transfer is discovered.

II. PROCEDURES

B-1054-SNAP - PR PO BEGINNING THE DISQUALIFICATION PERIOD

If the client is already certified, send a notice of adverse action and follow adverse action procedures outlined in [C-830-SNAP](#). The disqualification begins with the effective month after the notice of adverse action period ends unless the client requests a fair hearing and continuation of benefits.

III. FORMS AND INSTRUCTIONS

There are no forms and instructions associated with this policy.

IV. REFERENCES

[7 CFR 273.8](#)

[LAC 67:III Subpart 3 Supplemental Nutrition Assistance Program, Chapter 19, Subchapter H.](#)